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LINE 7

25-CIV-09206

RICHARD FERNANDEZ VS. MICHAEL BOVO

RICHARD FERNANDEZ
MICHAEL BOVO

IAN A. HEAD
ROBERT K. PHILLIPS

DEFENDANT MICHAEL BOVO'S MOTION TO STAY

TENTATIVE RULING:

Defendant's Motion to Stay is DENIED. However, if the Defendant properly notices a contest and proposes a specific and/or temporary delay and/or limitation on certain discovery, the Court will seriously consider it (as well, of course, any arguments from Plaintiffs). The parties are strongly encouraged to meet and confer to discuss the matter in advance and reach a stipulated agreement as to scope/timing, including the possibility phased discovery.

As an initial matter Defendant's request for judicial notice of three exhibits is GRANTED. Evid. Code § 452(d).

The parties seem to agree that the motion is governed largely by *Pacers, Inc. v. Superior Ct.* (1984) 162 Cal. App. 3d 686 and *Avant! Corp. v. Superior Ct.* (2000) 79 Cal. App. 4th 876.

Whether to grant this stay is left to the Court's discretion. *Id.* at 882. In exercising that discretion the Court considers and balances the factors endorsed out in *Avant!*: "(1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation." *Id.* at 885.

Defendant relies largely on the fact that he is being prosecuted for the same acts that form the basis of this civil lawsuit. But in the Court's view, that is not enough and Defendant does not articulate any particularized burden.

As is likely almost always the case, the first factor favors the plaintiffs. The incident giving rise to this lawsuit occurred a year and half ago and this case is already almost eight months old. There is no trial set in the criminal case, which includes serious charges, and no indication as to when the criminal matter might be resolved. Were Defendant to take the criminal matter to trial and lose and appeal, it could be years before the criminal matter is resolved. Again, as is likely almost always the case, the second factor favors the defendant, but "it is not unconstitutional to force a litigant to choose between invoking the fifth amendment in a civil case, thus risking a loss there, or answering the questions in the civil context, thus risking [] criminal [consequences]." *Id.* The third factor slightly favors plaintiffs. While perhaps there will be additional discovery fights that would not occur were the case stayed, delay will negatively impact the Court's docket and is inconsistent with policies favoring timely resolution of cases. The fourth factor appears inapplicable here. And the Fifth factor slightly favors Plaintiffs as it is unclear to the Court how proceeding could negatively impact the public's interest in the criminal litigation.

Accordingly, the Court exercises its discretion and denies the motion.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 8

26-UDL-00587

THE JOHN STEWART COMPANY VS. LINDA CHRISTINA LUCERO MENDIETA

THE JOHN STEWART COMPANY
LINDA CHRISTINA LUCERO MENDIETA

MERCEDES A. GAVIN
PRO/PER

PLAINTIFF'S MOTION TO COMPEL AND FOR FEES

TENTATIVE RULING:

Plaintiff The John Stewart Co.'s ("TJS") Motion to Compel Defendant Linda Christina Lucero Mendieta ("Defendant")'s Responses to Discovery, Deem Admitted Requests for Admissions, and Request for Sanctions is **conditionally** GRANTED, subject to its (ability to) compl(iance) with the immediate next paragraph.

As an initial matter, Code of Civil Procedure sections 2030.020, subdivision (c), 2031.020, subdivision (c) and 2033.020, subdivision (c) provide that, in an unlawful detainer action, a plaintiff may propound interrogatories, make a demand for inspection or make a request for admissions by a party at any time that is 10 days after service of the summons on, or appearance by, that party, whichever occurs first. While the timing of the discovery in the context of the filing of the case suggests that it is likely timely, in this case, plaintiff has not yet filed proof of service of the summons. And, defendant answered on June 5, 2025 with the discovery at issue served by plaintiff just 4 days later. So for this motion to be granted, Plaintiff must establish that the discovery was timely by filing a proof of service of the summons/complaint that demonstrates the discovery was served at least 10 after the service of summons and emailing a courtesy copy to Department 11 (dept11@sanmateocourt.org) **by 12 p.m. on July 6, 2027**. If Plaintiff fails to do so, the Motion will be denied without prejudice. The remainder of this tentative assumes that Plaintiff can and will do so.

In an unlawful detainer proceeding, responses to interrogatories, inspection demands, and requests for admission must be served five days from service of the requests. Code Civ. Proc. § 2030.260 (b), § 2031.260 (b), § 2033.250 (b). If timely responses to interrogatories or inspection demands are not served, the responding party waives any objection to the interrogatories or demands and the propounding party may move for an order compelling responses. *Id.* § 2030.290 (a) & (b) and § 2031.300 (a) & (b). If timely responses to request for admission are not served, the responding party waives any objection to the requests and the propounding party may move for an order deeming the truth of the matters specified in the requests admitted. *Id.* § 2033.280 (a) & (b). A court must grant this latter order unless it finds that a proposed response to the requests that substantially complies with Code of Civil Procedure sections 2033.220 has been served. *Id.* § 2033.280 (c).

TJS presents evidence that it served its respective first sets of form interrogatories, inspection demands, and requests for admission on Defendant by express mail on June 9, 2026. Jun. 23, 2026 Declaration of Mercedes A. Gavin ("Gavin Decl.") ¶¶ 2–5, exhs. 1–4. Defendant's responses were therefore due no later than June 16, 2026. Code Civ. Proc. § 1013 (b) (service by express or overnight mail extends deadline by two court days). As of June 23, 2026, Defendant had not served any responses, and there is no indication any responses have been served since. Gavin Decl. ¶ 6.

Accordingly, Defendant is ordered to provide responses without objections to the interrogatories and inspection demands served upon her by TJS on June 9, 2026, no later than five (5) days after service of written notice of entry of a formal order. In addition, the truth of the matters in TJS's first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting declaration, is hereby deemed admitted by Defendant.

TJS also requests the imposition of monetary sanctions against Defendant for her failure to respond to discovery. While TSJ's memorandum of points and authorities only cites the statutes requiring monetary sanctions for an unsuccessful opposition to a motion to compel, failing to respond or to submit to an authorized method of discovery is the epitome of a misuse of the discovery process supporting the imposition of monetary sanctions. Code Civ. Proc. § 2023.010 and § 2023.030 (a).

TJS presents evidence showing it incurred reasonable expenses of \$585.00—in the form of \$525.00 in attorney fees and \$60.00 to bring the instant motion—as a result of Defendant's misuse of discovery. Accordingly, Defendant is ordered to pay \$585.00 in monetary sanctions to TJS no later than thirty (30) days after service of written notice of entry of the formal order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 9

26-UDL-00598

THE JOHN STEWART COMPANY VS. ELIANA MEDINA

THE JOHN STEWART COMPANY
ELIANA MEDINA

MERCEDES A. GAVIN
PRO/PER

PLAINTIFF'S MOTION TO COMPEL AND FOR FEES

TENTATIVE RULING:

Plaintiff The John Stewart Co.'s ("TJS") Motion to Compel Defendant Eliana Medina ("Defendant")'s Responses to Discovery, Deem Admitted Requests for Admissions, and Request for Sanctions is **conditionally** GRANTED, subject to its (ability to) compl(iance) with the immediate next paragraph.

As an initial matter, Code of Civil Procedure sections 2030.020, subdivision (c), 2031.020, subdivision (c) and 2033.020, subdivision (c) provide that, in an unlawful detainer action, a plaintiff may propound interrogatories, make a demand for inspection or make a request for admissions by a party at any time that is 10 days after service of the summons on, or appearance by, that party, whichever occurs first. While the timing of the discovery in the context of the filing of the case suggests that it is likely timely, in this case, plaintiff has not yet filed proof of service of the summons. And, defendant answered on June 5, 2025 with the discovery at issue served by plaintiff just 4 days later. So for this motion to be granted, Plaintiff must establish that the discovery was timely by filing a proof of service of the summons/complaint that demonstrates the discovery was served at least 10 after the service of summons and emailing a courtesy copy to Department 11 (dept11@sanmateocourt.org) **by 12 p.m. on July 6, 2027**. If Plaintiff fails to do so, the Motion will be denied without prejudice. The remainder of this tentative assumes that Plaintiff can and will do so.

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written notice of entry of a formal order. In addition, the truth of the matters in TJS's first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting declaration, is hereby deemed admitted by Defendant.

TJS also requests the imposition of monetary sanctions against Defendant for her failure to respond to discovery. While TSJ's memorandum of points and authorities only cites the statutes requiring monetary sanctions for an unsuccessful opposition to a motion to compel, failing to respond or to submit to an authorized method of discovery is the epitome of a misuse of the discovery process supporting the imposition of monetary sanctions. Code Civ. Proc. § 2023.010 and § 2023.030 (a).

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